

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600306	ORELLANA VS EDGAR LADISLAO BRACAMONTE PORTILLO	DEMURRER ON COMPLAINT FOR AUTO (OVER \$35,000) OF EFRAIN ORELLANA AS TO CAUSE(S) OF ACTION ENTIRE ACTION BASED ON STATUTE OF LIMITATIONS

Tentative Ruling:

The meet-and-confer requirement has been met.

Plaintiff appears to assert that evidence exists that Plaintiff submitted the complaint in November, not January 5, 2026. The court had previously denied Plaintiff's motion to nunc pro tunc and deem the complaint filed as of November 15, 2025. However, the denial was without prejudice. The hearing is continued to October 6, 2026, at 8:30 a.m. to allow Plaintiff to bring another motion nunc pro tunc to provide evidence that Plaintiff submitted the complaint to the court in November.

Moving party is ordered to give notice.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2600721	GEORGE VS DOORDASH, INC.	MOTION TO STRIKE COMPLAINT ON 1ST AMENDED COMPLAINT

Tentative Ruling:

The meet-and-confer requirement has been met.

The court may strike any irrelevant, false, or improper matter inserted in any pleading; or, strike all or any part of any pleading not drawn or filed in conformity with the laws of this state. (Code Civ. Proc., §§ 435, subd. (b)(1), 436.)

A motion to strike is the proper vehicle to attack a claim for punitive damages. (Code Civ. Proc., §§ 435-436; *Turman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.) To set forth a claim for punitive damages, Plaintiff must allege ultimate facts showing oppression, fraud or malice. (Civil Code § 3294.) Mere negligence, even gross negligence, is not sufficient to justify an award of punitive damages. (*Ebaugh v. Rabkin* (1972) 22 Cal.App.3d 891, 894-895; *Moody v. McDonald* (1854) 4 Cal. 297, 299.) The current definitions of "malice" and "oppression" were changed by the 1987 amendments to Civil Code §3294, to incorporate "despicable conduct." The amendments narrowed the definitions so that punitive damages will only be awarded to punish conduct that is so "vile, base, contemptible, miserable, wretched, or loathsome that it would be looked down on and despised by ordinary decent people."

(*Butte Fire Cases* (2018) 24 Cal.App.5th 1150, 1159; *Mock v. Michigan Millers Mutual Ins. Co.* (1992) 4 Cal.App.4th 306, 331.)

The FAC alleges Herrera drove at an “unsafe speed,” “while distracted by the use of an application,” that “caused him to take his eyes completely off the roadway thereby preventing him from ever seeing” Decedent, and then continued driving “to complete deliveries.” (FAC, ¶¶ 11, 16-18, 33-35.) Here, these allegations describe alleged negligence and a statutory violation, but they do not allege particular facts showing how Herrera knew he had actually struck a person, deliberately continued driving despite that knowledge, or otherwise acted with the requisite conscious disregard. Critically, the allegation that he left “because he was too distracted and inattentive to realize that he had struck a pedestrian” undermines the inference that Herrera has actual knowledge that he had struck a person. (FAC, ¶ 16(e).) The allegations that Herrera drove “distracted” do not describe the kind of “vile, base, contemptible, miserable, wretched, or loathsome” behavior required to be “despicable.” Further, “[f]ailure to stop and render aid constitutes negligence as a matter of law, in the absence of a legally sufficient excuse or justification.” (*Brooks v. E.J. Willig Truck Transportation Company* (1953) 40 Cal.2d 669, 679.) Therefore, the alleged facts are insufficient to state a claim for punitive damages. **The Court therefore strikes the present punitive allegations against Herrera with ten (10) days leave to amend. Plaintiff is ordered to file and serve the Second Amended Complaint within ten (10) days. Thereafter, Defendant DoorDash is ordered to file and serve its answer or other pleading within ten (10) days. Moving party is ordered to submit a proposed order consistent with this ruling by no later than August 5, 2026, by 5:00 p.m.**

A corporate entity is liable for punitive damages based on the acts of an employee only if: (1) the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others; or (2) the employer authorized or ratified the wrongful act of the employee; or (3) the employer was itself guilty of oppression, fraud, or malice. (Civ. Code § 3294(b).) The advance knowledge, ratification, or act of oppression, fraud, or malice must be on the part of an “officer, director, or managing agent of the corporation.” (*Ibid.*) Here, the FAC pleads that DoorDash’s officers, directors, or managing agents knew its application and delivery demands caused distracted driving and made collisions “virtually certain.” (FAC, ¶¶ 21-24.) It alleges these corporate agents knew Herrera was unfit and incompetent to drive a vehicle on DoorDash’s behalf because he would drive at unsafe speeds, engage in distracted driving, and operate without adequate prior safety training, yet still authorized him to make deliveries on the date of the collision. (*Id.*, ¶¶ 22-24.) It further alleges that DoorDash’s officers, directors, or managing agents intentionally permitted and/or directed Herrera to prioritize delivery schedules over public safety. (*Id.*, ¶ 37.) Read as a whole and accepted as true, these allegations are sufficient at the pleading stage. **The motion to strike is denied as to DoorDash.**